

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KATIA GENES,

Index No.

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER CHIHO TONG, NEW YORK CITY
POLICE DEPARTMENT CHIEF OF PATROL
JOHN CHELL, and ANSEL GOOLCHARAN,

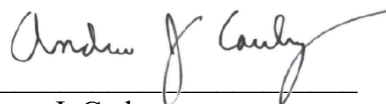
New York County
designated as venue.
CPLR Sec. 504(3)

Defendants
-----X

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 18, 2024

LAW OFFICES OF ANDREW J. CARBOY LLC

By: 
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KATIA GENES,

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER CHIHO TONG, NEW YORK CITY
POLICE DEPARTMENT CHIEF OF PATROL
JOHN CHELL, and ANSEL GOOLCHARAN,

Defendants
-----X

Plaintiff, KATIA GENES, by her attorneys, LAW OFFICES OF ANDREW J. CARBOY LLC, as and for her verified complaint as to defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHIHO TONG, NEW YORK CITY POLICE DEPARTMENT CHIEF OF PATROL JOHN CHELL and ANSEL GOOCHARAN, respectfully sets forth and alleges as set forth, below. Unless otherwise noted, all allegations and assertions are made upon information and belief.

1. Plaintiff KATIA GENES (“Plaintiff” or “Ms. Genes”) resides at 575 Main Street, New York, New York 10044, information personally known to Plaintiff.
2. Ms. Genes, age 68, teaches math in the New York City public school system, information personally known to Plaintiff.
3. The incident giving rise to this action took place in New York, New York on August 1, 2023. The date of the incident is personally known to Plaintiff.
4. On August 1, 2023, defendant THE CITY OF NEW YORK (hereinafter, “defendant CITY”), was and still is a municipal corporation duly organized and existing under and by virtue of

the laws of the State of New York.

5. Prior to the commencement of this action and on or about October 23, 2023, Plaintiff duly served and filed with defendant CITY and the Office of Comptroller a written Verified Notice of Claim setting forth the time when and place where the incident which is the subject of this lawsuit occurred, and the nature and extent of the injuries and damages sustained in the incident.

6. Prior to the commencement of this action and on or about October 27, 2023, Plaintiff duly served and filed with defendant CITY and the Office of Comptroller a written Amended Verified Notice of Claim setting forth the time when and place where the incident which is the subject of this lawsuit occurred, and the nature and extent of the injuries and damages sustained in the incident.

7. Such claim was presented within 90 days after the cause of action herein occurred.

8. More than thirty (30) days have elapsed since the presentation of the claim, and defendant CITY has not adjusted the same and has failed and neglected to make any payment of such claim and cause of action.

9. On or about February 5, 2024, a 50-h hearing was conducted of the Plaintiff.

10. This action is commenced within one (1) year and ninety (90) days of the subject occurrence.

11. Plaintiff has complied with all of the statutory conditions precedent to the commencement of this action.

12. At all relevant times, defendant CITY employed defendant NEW YORK CITY POLICE OFFICER CHIHO TONG (“defendant TONG”) as a police officer with its police force, the New York City Police Department (“NYPD”).

13. Defendant TONG remains employed by defendant CITY, today.

14. At all relevant times, defendant TONG acted within the scope of his employment with defendant CITY, and worked at the 5th Precinct in Manhattan.

15. At all relevant times, defendant TONG and/or other unnamed and unknown personnel of NYPD operated and controlled a Radio Motor Patrol vehicle, believed assigned number #3688 (“the RMP”), within the scope of their employment.

16. At all relevant times, defendant TONG and/or other unnamed and unknown personnel of NYPD operated and controlled the RMP with the knowledge, consent and permission of defendant CITY.

17. At all relevant times, defendant CITY owned the RMP, described above.

18. At all relevant times, defendant CITY employed defendant NEW YORK CITY POLICE DEPARTMENT CHIEF OF PATROL JOHN CHELL (“defendant CHELL”) as a chief at NYPD.

19. Defendant CHELL remains employed by defendant CITY, today.

20. At all relevant times, defendant CHELL acted within the scope of his employment with defendant CITY.

21. Defendant ANSEL GOOLCHARAN (“defendant GOOLCHARAN”) is over the age of eighteen (18) years and a resident of Queens, New York.

22. At all relevant times, defendant GOOLCHARAN operated a blue Honda minivan (“van”) with New York license plate # HCZ2903.

23. New York County is the proper venue for this action pursuant to CPLR Sec. 504(3).

24. This claim for compensatory damages of personal injuries arises from a police chase, using the RMP and other NYPD vehicles, of defendant GOOLCHARAN, operating the van.

Causing injury to Ms. Genes, a pedestrian, and posing great risk of harm to other pedestrians and vehicles, the NYPD engaged defendant GOOLCHARAN in a dangerous vehicle chase because his license plate was either expired or stolen. The attempted traffic stop of defendant GOOLCHARAN, for an expired or stolen license plate, degenerated into chaos lasting over forty minutes, covering large sections of lower Manhattan and Gramercy, involving the closure of the Manhattan Bridge and the use of multiple NYPD ground and air units. This action is brought against defendant CITY, vicariously liable for the acts, omissions, negligence (including affirmative negligence) and recklessness (including affirmative recklessness) of personnel of the NYPD, including individually named defendants CHELL and TONG, at all times acting within the scope of employment, for reckless and/or negligent conduct, carelessness, negligence, recklessness, reckless disregard for the safety of others, and violations of the New York State Vehicle and Traffic Law (“VTL”), other statutes, and violations of the NYPD Patrol Guide (“Patrol Guide”), training directives and other procedures. The CITY is vicariously liable, too, for unnamed and unknown agents, servants, employees and/or representative who brought about the subject incident through negligence and recklessness. References to the acts and omissions of defendant CITY include not just the acts and omissions of defendants TONG and CHELL, sued herein individually for their negligence and recklessness, but also include the acts and omissions of other unnamed and unknown agents, servants, employees and/or representatives for which the CITY is additionally and vicariously liable. Defendant GOOLCHARAN is sued for his negligence.

25. The CITY, through defendant CHELL and other personnel at the NYPD, is also liable for dangerous modifications made to longstanding NYPD vehicle pursuit procedures. These changes affected the privileged operation of emergency vehicles. (VTL Sec. 1104) Essentially, as more fully detailed below, any driver refusing to stop for the police is to be “chased,”

regardless of the type of his/her underlying offense and the danger posed to the surrounding communities by a vehicle pursuit, a stark departure from historic NYPD mandates. *“People think they can take off on us . . . those days are over,”* explained defendant CHELL at a top-level NYPD July 6, 2023 press conference with Police Commissioner Caban, detailing the change effected by the NYPD. As reported, *“an NYPD official . . . said the emphasis on pursuits, with the encouragement of top police brass, creates a hopped-up environment that can become a ‘free for all.’ ”* (Source: The City, July 21, 2023)

26. As a result of the procedure changes, there were more vehicle pursuits by NYPD in the first six months of 2023 than in the past five years combined. Six civilian deaths resulted. (Source: The City, July 21, 2023) Some report a 600% increase in pursuits during this time period. Because of the epidemic of police chases resulting from these reactive and unstudied procedure modifications, emergency rooms cannot distinguish between the injured victims. On August 1, 2023, the date of the incident, Bellevue Hospital personnel confused Ms. Genes, injured in lower Manhattan by a NYPD chase, with one of the ten (10) pedestrian victims from another and unrelated police chase in midtown (Third Avenue and 43rd Street) on that *same day*. All victims were treated at Bellevue.

27. In the aftermath, defendant CITY took a number of unusual actions, underscoring the unlawful nature of the vehicle pursuit procedure changes and the negligence and recklessness surrounding the chase of defendant GOOLCHARAN:

- A) First, while in the hospital, bleeding and awaiting emergency surgery for her shattered arm, Ms. Genes was visited by defendant TONG, who posed a series of questions and wanted to show her cellphone video, apparently of the chase and/or of her being struck. Ms. Genes declined to answer or view the footage;

- B) On the day of her release from the hospital and return home, two NYPD Internal Affairs Bureau investigators visited Ms. Genes' apartment, unannounced, and interviewed her about the pursuit;
- C) The official NYPD report of the incident, made available to the public days later, makes no reference to the police vehicle chase, describing a simple "hit and run." **(Exhibit 1)** The report does not explain that the incident degenerated from a failure to stop for an expired license plate into chaos lasting over forty minutes, covering large sections of lower Manhattan and Gramercy, involving the closure of the Manhattan Bridge and the use of multiple NYPD ground and air units. Although NYPD attempted to stop GOOLCHARAN, initially, for a "stolen" or "expired" license plate before the chase commencement, the report provides the same license plate details without comment and in the ordinary course;
- D) On August 10, 2023, the NYPD appeared to "backpedal" on its initiative to chase every driver who refused to stop. NYPD Chief of Department Maddrey sent a memorandum to defendant CHELL. In the memo, Chief Maddrey urged that "all members of service...familiarize themselves with the Department's vehicle pursuit policies." Chief Maddrey reiterated the factors governing pursuit commencement, including population density, nature of the underlying offense and time of day. NYPD members, reminded Chief Maddrey, "have a primary duty to protect human life, including the lives of innocent bystanders." **(Exhibit 2: Chief Maddrey August 10, 2023 Memorandum);**
- E) Then, in late August, weeks after Ms. Genes' incident, NYPD Chief Matthew Pontillo, head of the NYPD's Risk Management Bureau, was "ousted." As The City reported, Chief Pontillo was tasked with *"identifying potential misbehavior and taking steps to prevent it. As the number of vehicle pursuits skyrocketed by 600%...Pontillo was critical of the aggressive practice, going so far as to flag 20 officers involved in such pursuits for additional training or supervision. Those actions put him at odds with other high-ranking officers and paved the way to his forced resignation;"* and

F) Also in August 2023, defendant CITY removed the NYPD Patrol Guide section governing vehicle pursuits, 221-15, from NYPD's official website, concealing it from public view. "New York City Local Law No. 129 of 2016, mandates the New York City Police Department to publish the Patrol Guide online for the public to view." (Source: www.nyc.gov/site/nypd) This Patrol Guide section has not been restored, yet. (See, e.g. "NYPD Doesn't Want You to Know the Official Policy on Police Chases" Streetsblog NYC, August 30, 2023). Violating Local Law No. 129, defendant CITY deprives the public of this relevant information. This illegal concealment protects the CITY from liability, and compromises the ability of innocent victims to seek redress in the Court system for unchecked vehicle pursuits.

28. As a result of an independent investigation, including securing video footage from the neighborhood (stills are reproduced in this complaint) and conducting interviews, Plaintiff learned of additional facts and context not shared with her by the NYPD. The Court granted Plaintiff's pre-action application to obtain NYPD files of the incident, but only to the extent that such materials are to be preserved by defendant CITY for disclosure in this action.

29. The VTL provisions at issue and violated by the defendants include, but are not limited to: Section 1101 (a); Section 1104; Section 1110; Section 1111; Section 1120; Section 1127; Section 1128; Section 1129; Section 1140; Section 1142(b); Section 1151; Section 1160; Section 1163; Section 1180(a); and Section 1212. The provisions of Sections 1146 (b) 1 and 2 also apply to this claim. "It is a traffic infraction for any person to do any act forbidden or fail to perform any act required in this title. " N.Y. Veh. & Traf. Law § 1101 "The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others." N.Y. Veh. & Traf. Law § 1104(e)

30. These violations support the negligence and recklessness claims.

31. These violations also evidence the negligence and recklessness of defendants CITY, TONG and CHELL

32. Defendants also violated New York City Traffic Rules and regulations, such as Sec. 4-02 (c), Sec. 4-02 (d), Sec. 4-03 (a) (3), Sec. 4-03 (a) (5), Sec. 4-03 (b), Sec. 4-06(a)(1) Sec .4-05, and Sec. 4-12 (p)(2).

33. In addition, defendant CITY, TONG and CHELL violated the NYPD Patrol Guide and training guidelines/instructions, including NYPD Regulations governing pursuits, such as, but not limited to, Patrol Guide Procedure 221-15 (“Vehicle Pursuits”) formerly known as 212-39. Conditions and factors governing the commencement and continuation of vehicle pursuits included, but are not limited to: the minor nature of the underlying offense; the time of day; the population density of the involved neighborhoods; the residential nature of the involved neighborhoods; the amount of traffic; the fair/mild weather; the number of pedestrians present; and the behavior of the pursued driver himself. Accordingly, the Patrol Guide mandated not initiating a chase of defendant GOOLCHARAN or, if initiated in violation, terminating the chase. In ignoring and/or disregarding these factors, in commencing the pursuit and continuing it, and, in modifying well-established police procedures that governed pursuits, defendants CITY, TONG and CHELL breached their duty of reasonable care, were negligent and were otherwise reckless in the vehicle chase of defendant GOOLCHARAN. These defendants exercised no discretion in bringing about the chase.

34. Defendants TONG and CHELL are liable, and the CITY remains vicariously liable for the negligent and reckless acts of its police personnel, including defendants TONG and CHELL, among others, not known to Plaintiff, resulting in injuries, including those arising from

the commencement and continuation of the vehicle chase, as well as the failure to discontinue it. These actions were undertaken by defendants CITY, TONG and CHELL with both negligence and reckless disregard for public safety, including the safety of the Plaintiff. Defendant CITY remains liable for the actions of defendant CHELL and other NYPD personnel who undertook dangerous modifications to longstanding policies and procedures governing vehicle pursuits, without the benefit of study, debate, assessment and/or analysis of the impact of such changes, and without the exercise of discretion. These policy and procedure modifications violated policy and procedure of the NYPD and the VTL, and were dangerous, negligent and reckless, bringing about the subject incident.

35. This action arises from a motor vehicle chase of defendant GOOLCHARAN initiated by personnel of the CITY, at NYPD, such as defendant TONG, on August 1, 2023 (“the chase”).

36. On or about August 1, 2023, defendant CITY, through defendant TONG and other personnel of NYPD, engaged the van operated by defendant GOOLCHARAN by commencing and continuing the chase in a negligent and reckless manner, without the exercise of discretion.

37. During the chase initiated by defendant CITY, defendant GOOLCHARAN lost control of the van, driving up and onto a sidewalk, and striking Ms. Genes.

38. Defendant CITY, through NYPD and personnel such as defendants TONG and CHELL, initiated and continued the chase in violation of the NYPD Patrol Guide, NYPD training, and traffic laws of New York State and New York City.

39. The commencement and continuation of the chase were negligent and reckless under the common law of New York State.

40. Defendant CITY, through NYPD and personnel such as defendants TONG and CHELL, initiated and continued the chase in a negligent and reckless manner

41. The commencement and continuation of the chase brought about Ms. Genes' injuries.

42. As reported in newspapers and media accounts, the "offense" that gave rise to the chase was a license plate that was either "stolen" or "expired." NYPD personnel, using what is known as a License Plate Reader, determined defendant GOOLCHARAN had a stolen or expired license plate on the van, just as tens of thousands of other vehicles on the streets of New York City do.

43. Ms. Genes sustained injuries at approximately 4:45 p.m. on August 1, 2023, as a result of the chase initiated and continued by defendants. The chase began up to ten (10) minutes *before* Ms. Genes was struck.

44. The duration of the chase before the incident afforded the opportunity to call it off.

45. Defendant CITY, through NYPD, including defendant TONG, failed to terminate the chase before it resulted in injury.

46. The duration and path of the chase on a number of streets, including Chrystie Street, Rivington Street, Bowery, Grand Street and Broome Street, among others, as well as the evasive maneuvers and high rate of speed of defendant GOOLCHARAN, should have alerted defendant CITY and defendant TONG to the folly and danger of continuing the chase before Ms. Genes sustained injury.

47. For reasons known only to personnel of the CITY, at NYPD, the official NYPD MV 104 report of the incident makes zero reference to the chase or to the stolen/expired license plate mounted on the blue van. An objective reader of the report cannot ascertain the underlying facts surrounding the event, including the chase and the basis for its commencement. Instead, the collision with Ms. Genes is reported simply as a "hit and run." (**Exhibit 1: NYPD MV-104 AN report**)

48. Defendant GOOLCHARAN threatened no one at the time defendant CITY, through NYPD, sought to stop his van. Defendant GOOLCHARAN was unarmed, and had not engaged in violent conduct.

49. The license plate of the Goolcharan van was expired or stolen, triggering the police chase in the first instance.

50. However, personnel of the CITY, at NYPD, did not believe that information significant enough to include in the report of Ms. Genes' incident. In fact, the license plate (stolen) appears as the usual and lawful/legal license plate of the Goolcharan van in the MV 104. Personnel of the CITY, at NYPD, even recorded the VIN number of the vehicle from which the plate was stolen as the VIN number of the van that struck Plaintiff. **(Exhibit 1)** The report was prepared on August 2, 2023, the day after the vehicle chase and defendant GOOLCHARAN's apprehension. All of the information *omitted from* the report was known to personnel of the CITY, at NYPD, at the time.

51. Personnel of the CITY, at NYPD, such as defendant TONG, initiated a high speed and dangerous chase because of a stolen license plate, not because of any violent act or threatened violence or other circumstance endangering the public.

52. There was no reason to initiate a pursuit for a "stolen" license plate detected on defendant GOOLCHARAN's van, one of over 33,000 license plates flagged by personnel of the CITY, annually. Defendant CITY, by operation of its historical procedures, was mandated not to pursue GOOLCHARAN for this minor offense. And yet, the stolen license plate is recorded as defendant GOOLCHARAN's own on the NYPD MV 104 report. There is no mention in the police report of the vehicle chase. There is no reference to GOOLCHARAN being "flagged" for having a stolen or expired plate. The "reporting" by personnel of the CITY, at NYPD, with all

of the relevant information in their possession, is shown to be misleading and incomplete, if not a coverup of wrongdoing. **(Exhibit 1: NYPD MV-104 AN report)**

53. Upon information and belief, defendant CITY, through NYPD and its personnel, such as defendant TONG and defendant CHELL, violated the Patrol Guide provisions governing vehicle pursuits (221-15 formerly known as 212-39), as follows.

54. In failing to determine the necessity for commencing and continuing a vehicle pursuit, although required to by the Patrol Guide and common law principles of negligence, reasonable care and recklessness, defendants CITY, TONG and CHELL set into motion a dangerous chain of events that resulted in injury to Ms. Genes. The chase should not have been commenced, in the first place, given the conditions in the surrounding neighborhood, concentration of pedestrians and traffic, type of neighborhood (mixed residential and commercial), time of day, weather, and nature of the underlying infraction.

55. Defendant CITY, through personnel such as defendant TONG, failed to timely alert supervisory personnel of the decision to initiate a pursuit and obtain approval to do so, in violation of procedure.

56. The failure to timely alert supervisory personnel of the decision to initiate pursuit denied NYPD supervisory personnel the ability to disapprove the chase or suspend and/or terminate the pursuit at a point in time before any injuries were sustained.

57. At the time NYPD supervisory personnel learned of it, the chase had devolved into chaos.

58. Had NYPD supervisory personnel been properly and timely informed, as mandated, they would have discontinued the chase at a point in time sufficient to protect Ms. Genes from injury. The supervisory personnel would have ordered the chase discontinued or not approved it

in the first place. Alternatively, these supervisory personnel permitted the pursuit in the first place, an act of negligence and recklessness, and in violation of procedure.

59. Defendant CITY, through personnel such as defendant TONG, ignored the nature of the offense before commencing and continuing a vehicle pursuit. Here, the offense or infraction was a stolen or expire license plate. There was no violence taking place and no violence had taken place up until the point of chase commencement. The van and its driver were not connected to any recent criminal event, and the van was not “flagged” for any moving violation. The nature of the offense mandated no commencement of a vehicle pursuit, in the first instance.

60. Ordinarily, defendant CITY locates and tickets and/or tows cars with fake or stolen license plates, issuing over 16,500 citations for such infractions in the first six months of 2022. In a July 2022, press release, defendant CITY released this half-year figure, with Mayor Adams explaining, “If you use a fake plate, we will tow, and auction your car.” Suffice it to say that personnel of the CITY, at NYPD should not engage in chaotic, dangerous vehicle pursuits for every fake or stolen license plate identified, some 33,000 license plates plus, annually. There are plenty of vehicles with offending license plates to be found unoccupied and parked throughout the five boroughs. These vehicles may be identified and towed, at will, with zero danger posed to pedestrians and traffic.

61. Defendant CITY, through NYPD personnel, such as defendant TONG, failed to consider the time of day, location and population density of the neighborhood, although mandated to make such consideration by the Patrol Guide.

62. As demonstrated by the photographs reproduced in this pleading, the incident took

place in a densely populated neighborhood with stores, restaurants, hotels, other businesses and apartments. Traffic conditions were heavy. Large numbers of pedestrians walked on the neighborhood sidewalks, streets and crosswalks. The time of day was late afternoon on a clear summer day. These factors warranted not chasing GOOLCHARAN, not permitting the chase, and terminating the chase before injuries resulted. Commencement of the chase was negligent and reckless.

63. Defendant CITY, through the NYPD, warns personnel, in training, that ***“heavy traffic and congested city streets also increase the risk of an incident. City traffic is not conducive for pursuit and will more than likely end in a collision.”*** (NYPD Vehicle Pursuit training guide)

64. Accordingly, the Patrol Guide directs NYPD personnel, as follow : the ***“risks to the public”*** from vehicle pursuit **cannot** ***“outweigh the danger to the community if the suspect is not immediately apprehended.”*** Accordingly, the Patrol Guide mandated that the GOOLCHARAN pursuit not take place, at all.

65. The only reason for defendant CITY, through NYPD, to stop defendant GOOLCHARAN, initially, was an expired or stolen license plate. Defendant GOOLCHARAN was without a weapon, made no threats, and committed no crime warranting a traffic stop.

66. Before striking Ms. Genes, the van struck at least one other vehicle, a yellow taxi, and, upon information and belief, struck other moving and parked vehicles. The van also drove into intersections and through crosswalks, against red signals, narrowly missing pedestrians. The van also drove into, down and across marked bicycle lanes, across yellow lines, and onto sidewalks and/or cut street corners by driving up onto the sidewalk to tighten a turn. After Ms. Genes sustained injuries, the pursuit continued for approximately thirty to forty minutes more,

until such time that NYPD extracted the driver from the van and made an arrest.

67. The Patrol Guide also requires NYPD personnel to notify radio dispatchers at the start of the pursuit, providing information concerning the location, nature of the offense at issue and other information. Such information was not communicated, here. Had such information been communicated, the pursuit would not have been authorized. To the extent the pursuit was authorized for a stolen license plate, doing so was not warranted and such authorization was negligent, reckless and in reckless disregard for the safety of the public.

68. The NYPD Patrol Supervisor, in charge of the unit or units that responded, was required to direct and control the pursuit, according to the Patrol Guide. The Patrol Supervisor was negligent, reckless and acted in reckless disregard for the safety of others in allowing the pursuit and its continuation, and in failing to terminate it at a point in time before Ms. Genes was injured. The Patrol Guide mandates the involvement and supervision/direction of the Patrol Supervisor: “the patrol supervisor shall ensure that the provisions of Patrol Guide 221-15, ‘Vehicle Pursuits,’ are strictly observed.” Defendant CITY is vicariously liable for this failure.

69. The provisions of the Patrol Guide 221-15 were neither observed nor substantially complied with, demonstrating negligence and recklessness.

70. Personnel of the CITY, at NYPD, such as defendant TONG, negligently, recklessly and with reckless disregard for the safety of others, initiated the chase.

71. Personnel of the CITY, at NYPD, including but not limited to defendant TONG, negligently, recklessly and with reckless disregard for the safety of others, continued the chase, and did not terminate it, with similar negligence, recklessness and reckless disregard for the safety of others.

72. Being pursued by personnel of the CITY, at NYPD, including but not limited to

defendant TONG, defendant GOOLCHARAN lost control of the van, striking Ms. Genes.

73. These acts and omissions, detailed above, were negligent, reckless and undertaken without due regard of public safety (with reckless disregard of public safety) and brought about the Plaintiff's injuries, for which defendants CITY, TONG and CHELL remain responsible.

74. At or about 4:45 p.m., while heading home after summer school, Plaintiff was struck from behind by the van, while walking well within a sidewalk. Defendant GOOLCHARAN accidentally mounted the sidewalk and drove, westbound, pursued by personnel of the CITY, at NYPD, such as defendant TONG.

75. The chase began approximately ten (10) minutes before Ms. Genes was struck. The chase lasted an additional thirty (30) to forty (40) minutes, thereafter. Personnel of the CITY, at NYPD, such as defendant TONG, initiated the chase over a routine non-violent offense or infraction that threatened no one: a stolen or expired license plate. These same personnel were mandated, under historic NYPD procedures, not to pursue GOOLCHARAN.

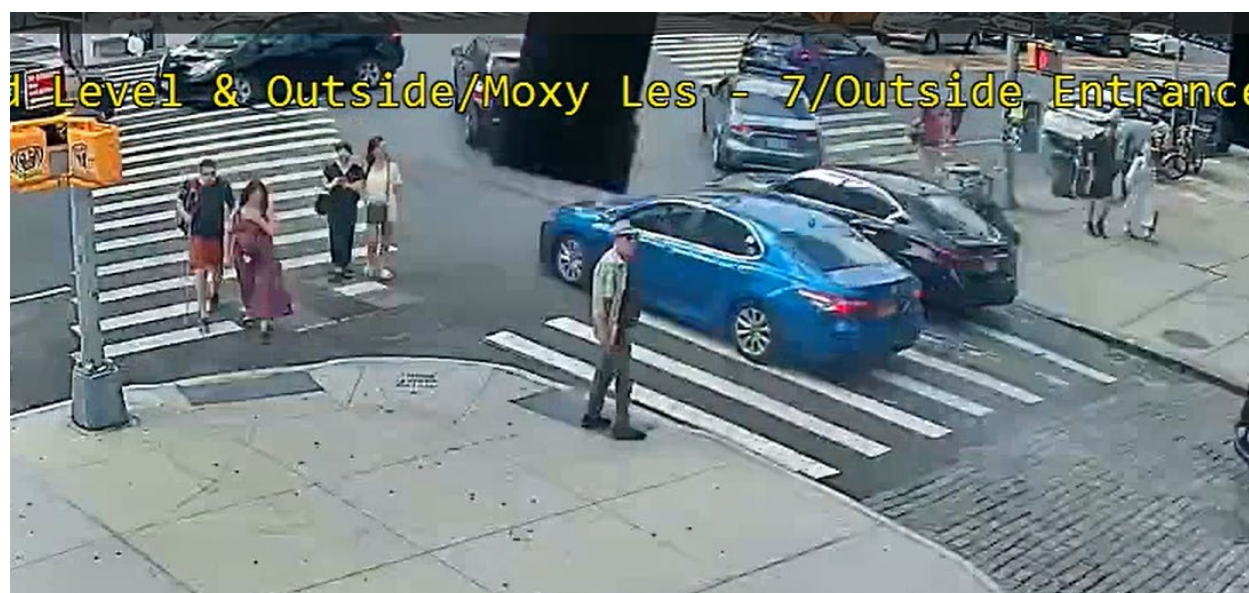
76. Our Town, New York Daily News, and The City reported that NYPD scanned the van, determining that defendant GOOLCHARAN was either driving a stolen vehicle or one with a stolen license plate.

77. GOOLCHARAN would not stop for the police.

78. A long and chaotic police chase followed. Note the use of the word "eventually" in the following excerpts of news coverage of the pursuit: *"A man driving a minivan with stolen plates led cops on a white-knuckle pursuit through downtown Manhattan on August 1."* *"The driver, identified by police as. . . Ansel Goolcharan, eventually struck a senior citizen on a Broome Street sidewalk, and was not apprehended until he became stuck in traffic near East 23rd Street."* *"A man driving a minivan careens down downtown sidewalk and slams into*

woman: a man driving a minivan with plates stolen from a Honda Odyssey was picked up by a scanner near Bowery and Grand Street, refusing to stop for police before barreling over a 66-year-old woman in front of the Piacere restaurant on Broome Street.” “Cops attempted to pull over the driver...but he made a break for it-at some point striking and injuring a 66-year old woman on the sidewalk.” “Two witnesses...saw multiple cop cars speeding down streets in what they said was a potentially dangerous way.”

79. Before striking Plaintiff, the blue van had been chased by defendant TONG and other NYPD personnel through a series of red lights. During the chase, the blue van veered into marked bike lanes and drove onto other sidewalks. At the last intersection before striking Plaintiff, Bowery and Broome Street, the blue van headed west and nearly struck three pedestrians in a crosswalk walking with the activated “walk” signal and, then, ran a red light. Crossing Bowery, the blue van struck a yellow taxi. Because of the heavy traffic conditions, the blue van then drove onto the south sidewalk of Broome Street, heading westbound. The RMP pursued just behind the blue van, also running the red light at Bowery.



Conditions at time and location of chase route at Bowery and Broome Street.



GOOLCHARAN van pursued by NYPD RMP, runs red light.



GOOLCHARAN van pursued by NYPD RMP, also running red light.

80. The negligence and recklessness of defendants CITY, TONG and CHELL, in initiating, undertaking and continuing a vehicle pursuit, for a non-violent infraction/offense, brought about a chaotic chase through the streets of the Lower East Side, Bowery, SoHo, Greenwich Village, the Union Square neighborhood and Gramercy. The vehicle chase endangered motorists and pedestrians throughout its duration. The vehicle chase, negligent and

reckless, caused Ms. Genes' injuries.

81. Defendants CITY, TONG and CHELL brought about and continued the pursuit regardless of conditions and factors, set forth in the Patrol Guide, mandating no pursuit at all or the termination of the pursuit, in advance of Ms. Genes sustaining injury. Defendants exercised no discretion and disregarded police procedure, acting negligently and recklessly.

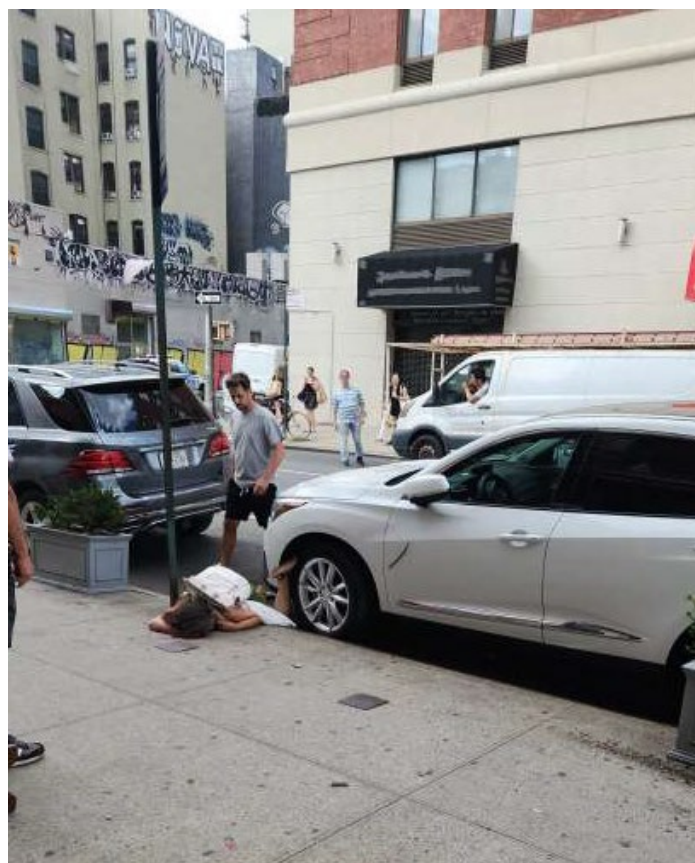
82. The location of the collision with Plaintiff was the sidewalk in front of the restaurant known as *Piacere*, located on the south side of Broome Street, between Bowery and Elizabeth Streets in Manhattan. The address of *Piacere* is 351 Broome Street, New York, New York. Photographs of the Plaintiff, taken before and after the collision, at its location, appear below:



Plaintiff walking westbound on Broome Street sidewalk with blue van fleeing NYPD pursuit approaching behind her.



Blue van strikes Plaintiff. Location: 351 Broome Street, between Bowery and Elizabeth Street.



Plaintiff after being struck.

83. A Commander and other supervisory NYPD personnel, in charge of the unit or units that responded, were required to approve, direct and control the pursuit, consistent with the Patrol Guide. They failed to do so. These supervisory personnel were negligent, reckless and acted in reckless disregard for the safety of others in allowing the pursuit and its continuation, and in failing to terminate it at a point in time before Ms. Genes was injured.

84. Responding/pursuing NYPD units, including defendant TONG, also failed to use emergency lights and sirens. Had responding/pursuing NYPD units used emergency lights and sirens, Ms. Genes would have been alerted to the approaching van and pursuing NYPD, affording her an opportunity to escape injury.

85. Responding/pursuing NYPD units, including defendant TONG, operated at a speed in excess of the twenty-five mile per hour limit. This was reckless and negligent.

86. Responding/pursuing NYPD units, including defendant TONG, should have, but failed to, discontinue the chase as: ***“traffic conditions were such that the risk to the public was extreme.”*** (NYPD Vehicle Pursuit training guide) This was reckless and negligent.

87. Responding/pursuing NYPD units, including defendant TONG, should have, but failed to, discontinue the chase as: ***“the actions of the violator were becoming more hazardous by continuing the pursuit.”*** (NYPD Vehicle Pursuit training guide) This was reckless and negligent.

88. Defendant CITY, through NYPD, including defendant TONG, engaged in a high-speed chase and/or in a chase that otherwise endangered the safety of the general public, including Plaintiff. In initiating and continuing the chase, and in failing to suspend or terminate it, Defendant CITY, through NYPD, violated and disregarded speed limits, traffic signals, stop signs, lane markings and other safety features present on the public streets. In initiating and

continuing the chase and in failing to suspend or terminate it, Defendant CITY, through NYPD, made it more likely, if not certain, that collisions and injuries would occur. The pursuit at issue was initiated and continued in a manner violating New York State common law, New York City Department of Transportation regulations, the VTL, and the provisions of the NYPD Patrol Guide. This was reckless and negligent.

89. Defendant CITY, through supervisory personnel of the CITY, at NYPD, failed to supervise the pursuit in accordance with the standards set forth in the Patrol Guide, including approving the pursuit, when it should not have been, and in failing to order its suspension or termination and failing to assess whether any pursuit was necessary in the first instance, given the non-violent and non-threatening nature of the “offense” at issue and the position of the involved vehicles in a commercial and residential neighborhood with heavy traffic and many pedestrians on a warm summer afternoon. This was reckless and negligent. Non-pursuit was mandated.

90. At all relevant times, the risks of pursuit, including collisions, property damage, and injuries/fatalities to other drivers, bicyclists and pedestrians, outweighed the benefit of apprehending a driver who, at first encounter, had committed no offense other than possibly having a stolen or expired license plate on a vehicle. Responding units of the NYPD, including defendant TONG, failed to ascertain those risks outweighed any benefits, and initiated the chase anyway, negligently and recklessly. These responding units were mandated not to pursue defendant GOOLCHARAN.

91. Upon information and belief, the responding unit or units of personnel of the CITY, at NYPD, including defendant TONG, failed to: activate emergency lights; activate emergency sirens; activate horns and other audio signals to alert those ahead of the approaching pursuit;

obey traffic control devices; obey speed limits; obey markings, such as lanes; heed red lights; heed stop signs; stop for pedestrians; properly turn or navigate, while simultaneously: operated vehicles in a negligent manner and in a reckless manner, without due regard for the safety of the public. This was reckless and negligent.

92. The acts and omissions, detailed above, transformed what was initially a needless vehicle chase into a violent and chaotic one, interfered with the lawful use of roadways by motorists and the lawful use of sidewalks by pedestrians, and endangered members of the public, including Ms. Genes.

93. The CITY, through personnel of the NYPD, such as defendant TONG, failed to exercise due care, violated mandatory police procedures, such as those set forth in the Patrol Guide governing vehicle pursuits, and violated New York law, including the provisions of the VTL, such as Sec. 1104. The exercise of due care, compliance with mandatory police procedures, such as those set forth in the Patrol Guide governing vehicle pursuits, and adherence to New York law would have entailed: not commencing or continuing the pursuit of GOOLCHARAN given the conditions of the neighborhood then and there existing, along with the time of day, weather, and the trivial nature of the underlying offense; and stopping the pursuit at a point in time in advance of Ms. Genes sustaining injuries. These violations brought about the Plaintiff's injuries.

94. The CITY, through personnel of the NYPD, such as defendant TONG, was otherwise negligent, affirmatively negligent, reckless, affirmatively reckless and operated in reckless disregard of public safety, bringing about the Plaintiff's injuries.

95. The acts and omissions, set forth above, were substantial factors in bringing about the pursuit, and defendant GOOLCHARAN's collision with Plaintiff with her resulting injuries.

Sudden Epidemic of High-Speed Vehicle Pursuits Initiated by NYPD

96. On an annual basis, the NYPD identifies more than 30,000 stolen or invalid license plates. Until 2023, appropriately and consistent with New York law, few, if any, of these license plate infractions resulted in or warranted chaotic, violent and dangerous vehicle pursuits. Personnel of the CITY, at NYPD, have undertaken highly publicized campaigns to tow parked cars found with “stolen” or forged license plates; these result in hundreds of violations being issued and/or arrests without dangerous car chases.

97. However, in 2023 or earlier, defendant CITY, through defendant CHELL and/or other supervisory personnel, initiated changes to NYPD procedures governing vehicle chases. These changes were, and remain, dangerous and violative of New York common law, the VTL, NYPD Patrol Guide provisions, and police training principles.

98. Defendants CITY and CHELL remain liable for pronouncements and modifications to policies and procedures, long-established and promulgated for the safety of the general public, for the commencement, continuation and cessation/termination by NYPD personnel of motor vehicle pursuits. The modifications and pronouncements concerning motor vehicle pursuits are at odds with, conflict with and are violative of longstanding policies and procedures.

99. These pronouncements of defendant CITY, through NYPD personnel, such as defendant CHELL, which apparently took effect in either late 2022 or early 2023: are not reduced to writing (as of yet, upon information and belief); are unreasonable; are unreasonably dangerous to members of the public; are/were not made in consideration of public safety concerns and the consequences of deviating from the law and established policies and procedures governing pursuits; and are not based upon formal studies, assessments or data concerning the injurious effects, dangers, risks and consequences, including death, property damage, and

injuries resulting from such pronouncements or changes. Before undertaking the implementation of these pronouncements and modifications, CITY failed to, through NYPD personnel, study the same risks, hazards and dangers that resulted in injury to the Plaintiff as a result of the subject pursuit, and failed to study, assess, and consider ways to reduce risks arising from such pursuits. The pronouncements and modifications were devised and implemented on a reflexive and improvised basis, as opposed to being the result of the exercise of discretion predicated upon study, analysis and assessment.

100. More specifically, and without the type of deliberation, consideration and assessment required before implementing such changes, defendant CITY, through defendant CHELL and others at NYPD, now directs vehicle pursuits as a matter of course, a break with historical practice, and exercised no discretion in devising and implementing the changes.

101. As a result of the changes, there were more vehicle pursuits by NYPD in the first six months of 2023 than in the past five years combined. Six civilian deaths resulted. (**Source:** The City, July 21, 2023) Some report a 600% increase in pursuits during this time period.

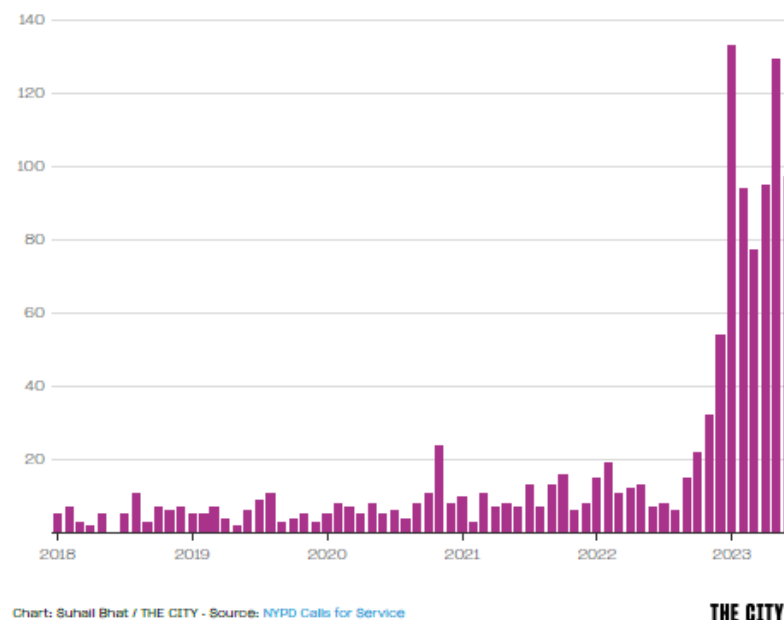
102. *“People think they can take off on us. . .those days are over,”* explained defendant CHELL at a top-level NYPD July 6, 2023 press conference with Police Commissioner Caban, detailing the change effected by the NYPD. Defendant CHELL’S words reflected official policy changes at the NYPD, and were construed as a directive or order by RMP operators, like defendant TONG and other NYPD personnel. Upon information and belief, memoranda and other writings were circulated throughout the NYPD detailing the procedure changes. No longer would the factors for commencement of vehicle pursuits, as set forth in the Patrol Guide, govern. So long as a driver did not stop for NYPD, that driver would be chased, regardless of the underlying infraction and regardless of the factors set forth in the Patrol Guide

limiting/restricting the commencement of vehicle pursuits.

103. A graph of the increase in NYPD vehicle pursuits appears, below.

NYPD Hits the Gas on Car Chases

Number of vehicle pursuits recorded in NYPD's 911 system from Jan. 1, 2018 to June 30, 2023



104. Defendant CITY's "pursuit" initiative, brought about by defendant CHELL and others at the NYPD, is inherently dangerous, especially during daytime in populated neighborhoods, such as the location of Plaintiff's incident. As reported, *"an NYPD official . . . said the emphasis on pursuits, with the encouragement of top police brass, creates a hopped-up environment that can become a 'free for all.'"* (Source: The City, July 21, 2023)

105. At the same time, no change has been made to decades' old NYPD procedure, requiring consideration of population density, the nature of the offense, and other factors, before initiating pursuit. There are other safeguards, too, at least on the "old" books, including getting approval from a commanding officer before initiating pursuit and, then, continuing pursuit.

106. Above all, in long-established and written NYPD policy, is the following primary

tenet: the “risks to the public” from pursuit cannot “outweigh the danger to the community if the suspect is not immediately apprehended.” (Source: NYPD written pursuit policies)

107. For reasons defendant CITY has not explained, the NYPD Patrol Guide section governing vehicle pursuits, 221-15, has been removed from NYPD’s official website, concealing it from public view. “New York City Local Law No. 129 of 2016, mandates the New York City Police Department to publish the Patrol Guide online for the public to view.” (Source: www.nyc.gov/site/nypd)

108. Defendant CITY removed this Patrol Guide section in August 2023, and has not restored it. (See, e.g. “NYPD Doesn’t Want You to Know the Official Policy on Police Chases” Streetsblog NYC, August 30, 2023). Violating Local Law No. 129, defendant CITY deprives the public of this relevant information, notwithstanding its importance. Defendant CITY has done this because of the improper and unlawful pronouncements resulting in modifications to these same policies. Defendant CITY, engaging in unlawful manipulation or concealment of evidence relevant to this action and others arising from police pursuits, faces adverse inferences for spoliation. The removal also demonstrates that the pursuit initiative, in effect at the time of Plaintiff’s incident, bypassed established NYPD procedures for the modification of the Patrol Guide. There are a number of steps that must be taken before a Patrol Guide provision is altered; these were bypassed in this instance, and violated the internal rules of the NYPD, further acts of negligence and recklessness.

109. Defendant CITY, through defendant CHELL and other NYPD personnel modified longstanding NYPD policy concerning motor vehicle pursuits, in an unreasonable, negligent, and reckless manner: without due consideration of safety concerns and consequences of any change; with reckless disregard for the safety of the general public; without any consideration of safety

concerns; and without any consideration of the potential of increased injuries and death, all resulting from any change. Similarly, NYPD personnel fast tracked the changes, failing to abide by established procedures for the modification of the Patrol Guide.

110. In addition, these NYPD personnel, including defendant CHELL, failed to consider the confusion that such a change, announced verbally, would create among rank and file, as well as supervisory personnel, familiar with longstanding NYPD policies and procedures governing motor vehicle pursuits. The policy modification, apparently informal and/or reflexive, improvised and/or spontaneous, was unreasonable, lacked reasonable basis, lacked basis, was the result of “knee-jerking” and frustration concerning the cessation and reduction of other NYPD practices, such as “stop and frisk” and/or “broken windows policy,” was arbitrary, was unfounded in sound principles and/or factors, and was initiated without study (such as a safety study), assessment, analysis, consideration or testing of its benefits and risks, including injuries to members of the public.

111. Before undertaking the implementation of these pronouncements and modifications, defendant CITY, and NYPD personnel including defendant CHELL, failed to study the same risks, hazards and dangers that resulted in injury to the Plaintiff as a result of the subject pursuit. The policy modification was undertaken without consideration of avoidance of injuries and death to the general public in the event that there was a resulting increase in motor vehicle pursuits. The policy modification was not the result of an exercise in discretion, as it was baseless, and caused uncertainty, confusion, frustration and equivocation among members of the rank and file of NYPD personnel, such as defendant TONG, as well as supervisory personnel, involved in the commencement, continuation and cessation of motor vehicle pursuits as the modification contradicted, conflicted with and was otherwise at odds with longstanding written NYPD policies, training, and practice. There was no consideration of such resulting confusion before initiating the

policy modification. The modification and/or encouragement and/or directive to pursue fleeing vehicle approved and put into effect by NYPD, and described by defendant CHELL, did not have a reasonable basis in safety and efficiency considerations.

112. These modifications, as well as the acts and omissions surrounding their creation and implementation, were a substantial factor in bringing about the subject incident and Plaintiff's injuries.

113. Defendant TONG understood the procedure modifications as a directive to pursue vehicles whenever they failed to stop when directed to by the NYPD. As defendant CHELL advised NYPD personnel, *"people thinking they can take off on us, those days are over."* Defendant CITY's modification and directive were substantial factors in defendant TONG's commencement of the vehicle chase, and, therefore, substantial factors in bringing about Ms. Genes' incident.

114. Simultaneous with this increase in pursuits, no change has been made to decades' old NYPD procedure, requiring assessment of population density, the nature of the offense, and other factors, before initiating pursuit. There are other safeguards, too, at least on the "old" books, including getting approval from a commanding officer.

115. The collision and resulting injuries sustained by Ms. Genes were caused by the negligence and recklessness of the defendants. The defendants breached good and accepted police procedure in revising the Patrol Guide, undertaking and continuing the pursuit of GOOLCHARAN, and in otherwise being negligent and reckless.

116. Underscoring the egregious nature of the pursuit, Ms. Genes was visited by NYPD personnel in the hospital, including defendant TONG. Then, on the very first day Ms. Genes returned home from the hospital, two members of NYPD's Internal Affairs Bureau

(“IAB”) appeared at her apartment. The IAB members introduced themselves as a sort of “big brother” at NYPD, and were investigating the pursuit. These NYPD investigators proceeded to ask her many questions about the incident. She did not have much information. Ms. Genes then asked them why they were interviewing her, but their answers were not clear. This information is personally known to Plaintiff.

117. The IAB is tasked with the investigation of misconduct by NYPD members. The activities of the IAB include *“detecting, investigating and bringing to justice. . . New York City police officers. . . who engage in misconduct.”* Source: nyc.gov/site/nypd/bureaus/investigative/internal-affairs.page) The IAB was, in fact, investigating NYPD misconduct in connection with the pursuit.

118. In late August 2023, weeks after Ms. Genes’ incident, NYPD Chief Matthew Pontillo, head of the NYPD’s Risk Management Bureau, was “ousted.” As The City reported, Chief Pontillo was tasked with *“identifying potential misbehavior and taking steps to prevent it. As the number of vehicle pursuits skyrocketed by 600%...Pontillo was critical of the aggressive practice, going so far as to flag 20 officers involved in such pursuits for additional training or supervision. Those actions put him at odds with other high-ranking officers and paved the way to his forced resignation.”*

119. On August 10, 2023, just nine days after Ms. Genes’ incident, NYPD Chief of Department Maddrey sent a memorandum to defendant CHELL. In the memo, Chief Maddrey urged *“all members of service...familiarize themselves with the Department’s vehicle pursuit policies.”* Chief Maddrey reiterated the factors to be considered before initiating pursuits, including population density, nature of the underlying offense and time of day. NYPD members, reminding Chief Maddrey, *“have a primary duty to protect human life, including the lives of*

innocent bystanders.” (Exhibit 2: Chief Maddrey August 10, 2023 Memorandum)

120. “In all cases, the decision to engage in a vehicle pursuit must be reasonable under the circumstances.” Underscoring the mandatory nature of the Patrol Guide, Chief Maddrey warned that personnel violating its directives would be subject to discipline. Id.

When considering the need to begin and continue a vehicle pursuit, members of the service must consider the nature of offense, the time of day, weather conditions, location and population density, the capability of the Department vehicle, and their familiarity with the area. Members of the service must immediately notify radio dispatchers at the start of any pursuit, activate body-worn cameras, use lights and sirens intelligently, and should consider the use of citywide interoperability radio channels, if appropriate. Patrol supervisors, platoon commanders, and borough duty captains, if available, are responsible for directing and controlling the pursuit and apprehension effort, and terminating the pursuit, if necessary. *A vehicle pursuit must be terminated whenever the risks to members of the service and the public outweigh the danger to the community if the suspect is not immediately apprehended.*

Following a vehicle pursuit, a supervisor must complete all required forms (Vehicle Pursuit Report, Collision Report – Department Vehicle, etc.) and should ensure, for unapprehended vehicles, the input of a person and vehicle alerts in PAS, and make notifications to the Borough Wheel. Commanding officers must then review these instances and the generated paperwork, which should include a statement regarding disciplinary action, if warranted. Commanding officers may refer involved members of the service to the Professional Standards Bureau for inclusion in the Early Intervention Program, even in cases that do not warrant discipline.

Maddrey August 10, 2023 Memorandum excerpt (original emphasis)

121. Chief Maddrey confirmed that the Patrol Guide and NYPD procedures mandate certain actions by personnel who may undertake vehicle pursuits, using the word “must” to make the point. NYPD personnel “**must** consider the nature of offense, the time of day, weather conditions, location and population density...” “**must** immediately notify radio dispatchers at the start of any pursuit.” “A vehicle pursuit **must be terminated** whenever the risks to members of the service and the public outweigh the danger to the community if the suspect is not caught.” Id.

121. The pursuit of GOOLCHARAN violated the Patrol Guide.

122. In addition to being negligent, the actions of defendants CITY, CHELL and other NYPD personnel, in abolishing restrictions on vehicle pursuits, were undertaken consciously, were unreasonable, and taken “in disregard of a known or obvious risk that was so great as to make it highly probable that harm would follow.” Saarinen v. Kerr, 84 N.Y.2d 494 (1994).

123. Ms. Genes is free from any fault for the collision and her resulting injuries. She was simply a pedestrian, walking on a public sidewalk, after teaching public school summer classes.

124. This action falls within the following exceptions set forth in CPLR Sec. 1602: Sec. 1602(6); and Sec. 1602(7). Further, defendant CITY, defendant CHELL and defendant TONG, collectively and/or individually, are more than fifty (50) percent responsible for bringing about the subject incident and the injuries sustained by Ms. Genes.

125. Ms. Genes has sustained serious injuries as such injuries are defined by Sec. 5102 of the Insurance Law.

126. Because of the recklessness and carelessness of the defendants, Ms. Genes sustained severe scalp lacerations; facial lacerations; right brow lacerations; bruising/hematomas; open or “compound” fracture of right humerus at mid-shaft, with split bone ripping through her muscles and skin; lacerations of the right arm; comminuted right humeral diaphyseal fracture with surrounding soft tissue swelling; other orthopedic fractures; other soft tissue injuries, including to muscles and ligaments; blood loss; need for surgical repair of open fracture: open reduction with internal fixation (plates and screws) and irrigation/debridement of debris and dead tissue; apex lateral angulation with foreshortening; risk of osteomyelitis; post-operative casting/bracing and bandaging; post-operative antibiotics; median arcuate syndrome; admission to Bellevue Medical Center from August 1, 2023 through August 3, 2023. This information is personally known to Plaintiff.

127. Plaintiff required surgery, sustained and continues to experience pain and suffering, disability, loss of mobility, loss of range of motion, loss of strength, permanent scarring and disfigurement, trauma, loss of enjoyment of life, sadness, recurring thoughts of the incident, and other injuries. She has required rehabilitation over a period of months, and has incurred economic losses in the form of missed time from work (uncompensated) and depletion of accrued personal and sick time (ordinarily, paid out at the time of retirement). She has incurred medical expenses, expenses necessary for or incidental to her care and treatment, co-pays and other outlays. She has suffered other direct consequences of these physical injuries, including the development of near diabetes, weight gain and hypertension. She now has an inability to perform daily life activities, and restrictions/limitations of her daily life activities. She is troubled by disturbing and vivid recurring thoughts/memories of the subject incident. Plaintiff is further injured by the failure of defendant CITY to conduct a meaningful investigation and take appropriate remedial action. This information is personally known to Plaintiff.

128. As a result of the negligence and recklessness of the defendants, Ms. Genes seeks compensation for economic and non-economic losses in an amount of money exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

129. Plaintiff expects that defendants will assert immunity as a defense to any claim relating to the modification or expansion of the NYPD's vehicle pursuit procedures insofar as such changes involved the ostensible exercise of discretion. However, there is no reasonable basis for the procedural changes. No analyses or tests were conducted to provide such a basis. No discretion was exercised in approving the changes. Further, defendants must demonstrate that they followed New York law and the policies and procedures of the NYPD, at all relevant times. The defendants did not do so.

130. Here, the procedure changes and ensuing chaos are violative of the NYPD's existing internal rules and procedures, longstanding but now obscured from public view online. These changes are not consistent with acceptable police practice, and are not based on reasoned judgment or discretion as they lack supporting data, tests and studies. The changes are improvised, spontaneous, reflexive in nature, and not the result of study or analysis. The changes are not the result of an exercise of discretion. Accordingly, there is no immunity defense. There is no government immunity "*where the municipality violates its own internal rules and policies and exercises no judgment or discretion.*" (Haddock v. City of New York, 75 N.Y.2d 478 [1990])

131. Plaintiff also disputes that she will be required to demonstrate the existence of a special duty against defendants CITY, TONG and CHELL.

132. First, with respect to negligence and recklessness claims against defendant TONG, the Court of Appeals limited the application of the reckless disregard standard set forth in VTL Sec. 1104(e) to "stopping, standing, proceeding past a red signal...speeding or proceeding in the wrong direction or making an unlawful turn."

133. Any other injury-causing conduct by defendant TONG, as well as that of defendants CITY and CHELL is "governed by principles of *ordinary* negligence," to which there is no immunity defense or special duty requirement. (Kabir v. County of Monroe, 16 N.Y.3d 217 [2011])

134. Defendant TONG is simply not entitled to any other potential immunity outside of that provided by VTL Sec. 1104. Defendant TONG does not receive the benefit of any defense based upon "special duty." His commencement, conduct and failure to terminate the pursuit (along with other NYPD personnel) is not protected by any form of immunity. See, e.g., Foster v. Suffolk Cty., 137 A.D.3d 855 (2nd Dept. 2016); Quintana v. Wallace, 95 A.D.3d 1287 (2nd Dept. 2012);

Ferrara v. Village of Chester, 57 A.D.3d 719 (2nd Dept. 2008); Rockhead v. Troche, 17 A.D.3d 118 (1st Dept. 2005); and Smelts v. Meloni, 784 N.Y.S. 2d 834 (Sup. Ct. 2004)

135. Similarly, with respect to modifications of the NYPD's vehicle pursuit procedures, the defendants do not benefit from the immunity of VTL Sec. 1104.

136. In addition, Plaintiff does not concede that she is obligated to demonstrate a special duty owed to her in the context of the incident; however, the special duty arises in two ways.

137. First, as a pedestrian, Ms. Genes remained entitled to the protection of the VTL, which governed the conduct of the defendants. This gives rise to a special duty. Ms. Genes was a member of a class of persons, pedestrians, for whose benefit the protections of the VTL were enacted. Ferreira v. City of Binghamton, 38 N.Y.3d 298 (Ct. App. 2022). More specifically, in addition to her common law negligence claims, her cause of action for recklessness is defined, governed by and arises from VTL Sec. 1104. Absent Sec. 1104, she would not have the ability to pursue these particular claims. Pursuant to Sec. 1104(e), police personnel are not relieved "from the duty to drive with due regard for the safety all of persons" and the section's provisions do not protect "from the consequences of his reckless disregard for the safety of others." Section 1104(e) establishes this reckless disregard standard of care "for determining civil liability for damages resulting from the privileged operation of an emergency vehicle." Kabir.

138. However, "if the conduct causing the accident resulting in injuries...is not privileged under Sec. 1104(b), the standard of care...is ordinary negligence." Kabir. As set forth above, there are no immunities for the initiation/commencement of a police chase. The defendants breached their special duties to Plaintiff, arising from operation of the VTL, bringing about the incident and causing her injuries.

139. Accordingly, by operation of statute, VTL Sec. 1104 affords Ms. Genes a right of

action against defendants CITY, TONG and CHELL, for conduct determined to be reckless. The statute's conferral of this ability to maintain a private right of action for recklessness against these government actors promotes the legislative purpose of the governing statute. VTL Sec. 1104 holds police to a reduced standard of care for certain actions (Kabir) taken during emergency operations; however, police personnel must not conduct such operations in a reckless manner. In this way, the legislature struck a balance between public safety and the ability of first responders to engage in emergency operations with vehicles. Saarinen v. Kerr, 84 N.Y.2d 494 (Ct. App. 1994) Allowing Ms. Genes to pursue a cause of action for recklessness, for the conduct identified by the Court of Appeals in Kabir, and permitting her negligence cause of action for other conduct, is consistent with the legislative purpose of VTL Sec. 1104.

140. Second, because defendants CITY and TONG undertook the pursuit of defendant GOOLCHARAN, and because defendant CITY, through its personnel, including defendant CHELL, modified, in a negligent and reckless manner, the criteria for the chase commencement and the attendant operation of emergency vehicles, exercising no discretion in doing so, these defendants "*took positive control of a known and dangerous safety condition.*" Ferreira. This assumption of control, through the CITY and TONG's direct action, and through the CITY and CHELL's modifications to procedure, also give rise to a special duty.

141. As set forth in the NYPD Patrol Guide and training, police vehicle pursuits are dangerous. At his July 6, 2023 press conference, defendant CHELL extolled the benefits of vehicle pursuits resulting in arrests of violent criminals, an endeavor fraught with hazard. Historically, NYPD mandated personnel assess the risks and benefits of undertaking a vehicle chase, and provided bright line directives in that regard. Violating these mandatory directives subjects personnel to discipline. **(Exhibit 2)** However, the modification issued by defendant NYPD,

including through defendant CHELL, upended policy and procedure, and violated law. The directive was not the result of an exercise of discretion, and the directive's mandates deprived responding officers, such as the personnel involved in the incident, including defendant TONG, of discretion and judgment. No differentiation was to be made by police personnel when motorists failed to stop; all such motorists would be pursued, regardless of risks and benefits. Defendant CHELL described the procedural changes, clearly: "*People think they can take off on us. . . those days are over.*" Accordingly, police pursuits skyrocketed in 2023.

142. After effecting it, defendant CITY, through defendant CHELL, explained the change by pointing to violent crime, like a shooting or robbery, occasionally associated with the operation of a vehicle bearing expired, stolen or fabricated license plates. Akin to the facts in Ferreira, a vehicle pursuit, "*like a no-knock warrant is a charged and volatile situation undertaken at the direction and supervision of municipal actors, who plan and execute*" it. The defendants "*can reasonably foresee and take steps to avoid many of the risks occasioned by uncertain reactions to chaotic events*" as "*the police exercise extraordinary governmental power.*"

143. With respect to a vehicle pursuit, the defendants are liable, "*knowingly creating an unpredictable and potentially dangerous condition*" and "*in such circumstances, the police direct and control a known and dangerous condition, effectively taking command*" of the chase. "*As a result, the municipality's duty to the individuals*" in the path of the chase "*exceeds the duty the municipality owes to the members of the general public...In other words, in those circumstances, the police take positive control of a known and dangerous condition, creating a special duty under the third situation recognized by this Court.*" Ferreira. Similarly, defendants

also took control of a known and dangerous condition they *brought about*, by commencing the pursuit in the first instance, creating a special duty to Plaintiff.

144. Defendants breached their special duty to Plaintiff, bringing about the incident and causing her injuries.

**As and For a First Cause of Action Sounding in Negligence
Against Defendants CITY, TONG and CHELL**

145. That at all times hereinafter mentioned, Plaintiff, repeats, reiterates and realleges paragraphs “1” through “144” of the within Complaint with the same force and effect as if set forth herein at length.

146. The aforementioned occurred as a result of the negligence of defendants CITY, TONG and CHELL.

147. By reason of the foregoing, Plaintiff has been damaged in a sum in excess of the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter.

**As and for a Second Cause of Action Sounding in
Recklessness against Defendants CITY, TONG and CHELL**

148. That at all times hereinafter mentioned, Plaintiff, repeats, reiterates and realleges paragraphs “1” through “147” of the within Complaint with the same force and effect as if set forth herein at length.

149. The aforementioned occurred as a result of the recklessness of defendants CITY, TONG and CHELL, recklessness defined by the VTL.

150. By reason of the foregoing, Plaintiff has been damaged in a sum in excess of the

jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter.

**As and for a Third Cause of Action Sounding in
Negligence against Defendant GOOLCHARAN**

151. That at all times hereinafter mentioned, Plaintiff, repeats, reiterates and realleges paragraphs “1” through “150” of the within Complaint with the same force and effect as if set forth herein at length.

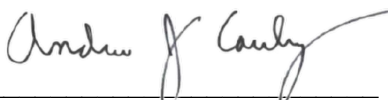
152. The aforementioned occurred as a result of the negligence of defendant GOOLCHARAN.

153. By reason of the foregoing, Plaintiff has been damaged in a sum in excess of the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter.

WHEREFORE, Plaintiff demands a jury trial and judgment against the defendants, as follows: FIRST CAUSE OF ACTION, in an amount that exceeds the monetary limits of all lower courts that would otherwise have jurisdiction over this matter; SECOND CAUSE OF ACTION, in an amount that exceeds the monetary limits of all lower courts that would otherwise have jurisdiction over this matter; and THIRD CAUSE OF ACTION, in an amount that exceeds the monetary limits of all lower courts that would otherwise have jurisdiction over this matter, together with the costs and disbursements of this action.

DATED: New York, New York
October 18, 2024

LAW OFFICES OF ANDREW J. CARBOY LLC

By: 

Andrew J. Carboy
Attorneys for Plaintiff
One Liberty Plaza, 23rd Floor
New York, New York 10006
(212) 520 7565

VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF NEW YORK)

KATIA GENES, over the age of eighteen (18) years and residing in New York, New York,
being duly sworn, deposes and says under penalties of perjury:

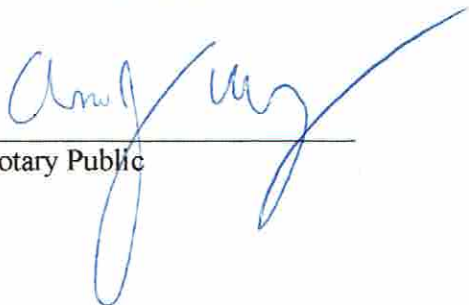
I am the Plaintiff in this action.

I have read the foregoing Verified Complaint and know the contents thereof. The same
(contents) are true to my knowledge. As to those matters stated to be alleged upon information and
belief, I believe them to be true.



KATIA GENES

Sworn to before me this
October 18, 2024



Notary Public

ANDREW J. CARBOY NOTARY PUBLIC, STATE OF NEW YORK Registration No. 02CA6300632 Qualified in New York County Commission Expires April 7, 2026
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